

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Daniel Cooper	Team: Squad #07	CCRB Case #: 201604452	☐ Force	☐ Discourt.	☐ U.S.
			☐ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Tuesday, 05/17/2016 2:49 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 11/17/2017	Precinct: 48		
Date/Time CV Reported Tue, 05/17/2016 11:04 AM	CV Reported At: IAB	How CV Reported: In-person	Date/Time Received at CCRB Mon, 05/23/2016 10:56 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Joseph Uvenio	19660	939623	048 PCT
2. POM Joseph Tobin	28621	939581	048 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Joseph Uvenio	Off. Language: Police Officer Joseph Uvenio made remarks to § 87(2)(b) based upon his perceived sexual orientation.	A . Unsubstantiated
§ 87(4-b) § 87(2)(g)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Case Summary

On May 17, 2016, at approximately 2:49 a.m., § 87(2)(b) contacted 911 while inside his home located at § 87(2)(b) in the Bronx. During the call, § 87(2)(b) reported that he had been harassed by an unidentified male while inside the Fordham Road train station. PO Joseph Uvenio and PO Joseph Tobin from the 48th Precinct responded to § 87(2)(b)'s apartment. After speaking to PO Uvenio, § 87(2)(b) closed his front door. At this point, § 87(2)(b) allegedly heard PO Uvenio utter the word, "faggot" under his breath (**Allegation A**). There were no arrests or summons issued.

There is no video evidence for this case. § 87(2)(b) provided an audio recording of his interaction with officers, but it did not capture the FADO allegation. The embedded audio file is below.



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Mediation, Civil, and Criminal Histories

- § 87(2)(b) declined mediation.
- As of June 22, 2016, a notice of claim inquiry is pending (Board Review 2).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]

Civilian and Officer Histories

- § 87(2)(b) has filed one previous complaint § 87(2)(b)
[REDACTED] § 87(2)(g)
[REDACTED]
- PO Uvenio has been a member of service for ten years and has been the subject of four allegations stemming from two cases, none which have been substantiated § 87(2)(g)
[REDACTED]
- PO Tobin has been a member of service for ten years and has been the subject of three allegations stemming from three cases, none which have been substantiated § 87(2)(g)
[REDACTED]

Findings and Recommendations

Allegation A- Offensive Language- Police Officer Joseph Uvenio made remarks to § 87(2)(b) based upon his perceived sexual orientation.

It is undisputed that § 87(2)(b) contacted 911 and claimed that he was harassed by a male at the train station. PO Uvenio arrived at § 87(2)(b)'s apartment and spoke to § 87(2)(b) in regards to his 911 call.

§ 87(2)(b) stated that during his interaction with PO Uvenio, he was visibly aggressive and annoyed but he denied that any officers commented on his demeanor. § 87(2)(b) stated that after he explained that he was harassed at the train station, PO Uvenio told him that as a matter of

policy, the NYPD does not file complaints regarding harassment. § 87(2)(b) did not recall the specific statements he made to the officers but recalled that he said something similar to, “You are fucking morons. You aren’t doing your fucking job. You are assholes.” § 87(2)(b) acknowledged that at this point none of the officers responded to his comments. § 87(2)(b) then slammed his front door and said, “I’ll just go back to IAB tomorrow.” After slamming the door, § 87(2)(b) could hear a voice he recognized as PO Uvenio’s say, “Faggot”. The statement was said distinctly but under the officer’s breath (Board Review 11). § 87(2)(b) also provided a statement to IAB § 87(2)(g)

§ 87(2)(b) provided an audio recording of the incident which he recorded on his cell phone. The audio captures the conversation between § 87(2)(b) and PO Uvenio but does not capture a point in which anyone utters the word, “Faggot” or any other offensive comment (Board Review 4 and 12).

PO Uvenio did not recall the specific details regarding the discussion he had with § 87(2)(b). However, PO Uvenio denied that any conversation took place regarding § 87(2)(b)’s sexuality or his perceived sexuality. PO Uvenio denied that he made any comments to § 87(2)(b) regarding his sexuality and denied that he or any other officer said the word, “Faggot” (Board Review 12). PO Tobin § 87(2)(g) denied that PO Uvenio or any officer said, “Faggot.” PO Tobin also denied that there was any discussion or comments regarding § 87(2)(b)’s sexuality (Board Review 14).

§ 87(2)(g)

§ 87(2)(b). Therefore, it is recommended that **Allegation A** be closed as **Unsubstantiated**.

§ 87(4-b), § 87(2)(g)

§ 87(4-b), § 87(2)(g)

[Redacted text block]

Squad:

Investigator: _____ Daniel Cooper _____
Signature Print Date

Squad Leader: _____ Diana Murray _____
Title/Signature Print Date

Reviewer: _____ _____
Title/Signature Print Date